

Department Of Law (18)

obtaining approval from the Appellate Division's Continuing Legal Education ("CLE") Board to enable the Law Department to be certified as an accredited CLE provider for attorneys in the Department. In this way, the Law Department will present CLE programs that are applicable to the work of municipal attorneys.

Contracts and Real Estate Bureau

- ✓ Provide legal services to the Office of the County Executive, the County Board of Legislators, all County departments, boards, and commissions with regard to the transactional business of the County, including real estate matters. Such legal services include, but are not limited to:
 - ◆ Assist clients with procurements, such as public bids, request for proposals (RFPs), and purchase contract issues;
 - ◆ Draft or review transactional documents, such as contracts, deeds leases, licenses, and letters;
 - ◆ Assist clients with contract negotiations;
 - ◆ Draft or review legislation for the Board of Legislators and/or Resolutions for the Board of Acquisition and Contract A&C resolutions related to various transactions;
 - ◆ Update and supplement contract bid documents and forms to reflect changes in the law and County procedures;
 - ◆ Provide legal advice and formal opinions regarding transactional matters, including but not limited to, interpretation of procurement laws, rules and regulations and conditions of grant-funded procurements (e.g. compliance with procurement rules, etc. tied to federal funding);
 - ◆ Work with the Department of Environmental Facilities on legal issues concerning water, sewer and solid waste district related matters;
 - ◆ Participate in capital projects review and planning; work with bond counsel and the Budget Department and/or Finance Department on legislation for financing specific capital projects and bond sales and other financing and re-financing;
- ◆ Maintenance of the compilation of the Laws of Westchester County;
- ◆ Review 'payment in lieu of taxes' (PILOT) agreements and Tax Certiorari orders;
- ◆ Participate in the Airport's ISO 14001 program;
- ◆ Participate in the Emergency Preparedness Task Force.
- ✓ Provide legal advice and counsel, research and drafting services to the Department of Information Technology in connection with implementing the County's Voice Radio Communications Systems Replacement Project. Attendance at weekly Radio Project meetings and monthly Steering Committee meetings. Continued to work on negotiating and drafting agreements to obtain the necessary real property rights for the Project. Continue to provide legal advice and counsel concerning Final System Acceptance for Stages 1 and 2 of the Project and an amendment to the Stage 3 option for the Project to expand in-building radio coverage. Working on agreements for two (2) new subprojects to provide mobile radios for all local public vehicles and to replace VHF antennas with tri-band antennas on all police headquarters to permit interoperable communication on the County trunk system.
- ✓ Provide legal advice and counsel, research and drafting services to the Department of Public Works and Transportation in connection with enforcing the County's rights against contractors who default under the County's public works construction contracts, as well as enforcing the County's rights against the sureties who issued the payment and performance bonds for such projects.
- ✓ Provided legal advice, drafted legislation and IMAs for the disbursement of East of Hudson Water Quality Investment Program Fund for various municipalities' approved water quality improvement and sewer district projects in accordance with the Watershed Memorandum of Agreement.
- ✓ Provided legal advice, research and drafting services for the creation and implementation of the new County Housing Flex Fund Program in order to provide assistance to developers for eligible projects for the creation of additional affordable housing units that affirmatively further fair housing throughout the County.

Department Of Law (18)

- ✓ Provided legal advice and drafted legislation to authorize an application to HUD for the County's FY 2025-2028 Consolidated Plan and FY 2024 Action Plan for the receipt of approximately \$5,809,844 in federal grant funding for the Community Development Block Grant Program, HOME Investment Partnerships Program and Emergency Solutions Grant Program.
- ✓ Provided legal advice, research and drafting services for legislation and applications to the NYS Comptroller for approval of Water District Capital Projects WD103, WD105 and WD305.
- ✓ Provide legal research and assistance in connection with investigating the feasibility and legal issues regarding a proposed County project to consolidate the County Sewer Districts into one consolidated County sewer district.
- ✓ Provide legal advice and preparation of legislation for a Phase 2 of the Mayfair senior housing project on the former West-HELP property in Greenburgh.
- ✓ Provided legal advice, drafted legislation, negotiated with counsel for the developer and other lenders, and prepared all closing documents for an NHLA affordable housing project at 321 Warburton Avenue, Yonkers for the creation of 94 units of affordable senior housing that will affirmatively further fair housing in the County.
- ✓ Closed on phase 2 of an affordable housing project at Route 22. Lewisboro to provide 10 additional units that will affirmatively further fair housing with a HUD HOME Investment partnership Program Investment of \$1,040,000.
- ✓ Provided legal advice and counsel to the Department of Environmental Facilities in connection with the procurement and administration of an emergency construction agreement for the construction of the below-grade sewer pumping station and sewer line replacement in the vicinity of the connection to the County's Hutchinson Valley High Level Interceptor on West Third Street between South Ninth and Tenth Avenues in the City of Mt. Vernon.
- ✓ Provided legal advice and counsel to the Department of Environmental Facilities in connection with the procurement and administration of separate emergency design and construction agreements in order to rectify the emergency situation resulting from the failing Tarrytown Forcemain located in Tarrytown and to address multiple New York State Department of Environmental Conservation Notices of Violations.
- ✓ Provided legal advice and counsel to the Departments of Environmental Facilities and Public Works & Transportation in connection with the negotiation and granting of permanent easements to the City of New York to enable the New York City Department of Environmental Protection ("NYCDEP") to construct a subsurface water tunnel that will become a part of the NYCDEP's Kensico-Eastview Connection Tunnel. Such tunnel will be approximately two (2) miles long and will convey water from Kensico Reservoir to the Catskill/Delaware Ultraviolet Disinfection Facility in Mt. Pleasant, New York. The Tunnel will enhance the redundancy of the New York City water supply system allowing for operational flexibility and planned outages and resulting in increased reliability for both Westchester County and New York City residents.
- ✓ Provided legal advice and counsel to the Deferred Compensation Board of the County which administers the deferred compensation retirement plan on behalf of County employees in accordance with Section 457(b)-(e) of the Internal Revenue Code.
- ✓ Provided legal advice and counsel to the Department of Parks, Recreation and Conservation in connection with a proposed amendment to the lease between the County and the Children's Museum in order revise certain terms and to the extent the termination of the lease.
- ✓ Provided legal advice and counsel to the department of Public Works & Transportation and the Department of Parks, Recreation & Conservation and negotiated with counsel of the Village of Sleepy Hollow and the developer of the Edge on Hudson development in the Village in connection with the design and construction of a service lateral water line extension to bring water service to Kingsland Point park, including but not limited to in connection with the acquisition of the necessary property rights needed to construct and main the water line.
- ✓ Provided legal advice and counsel to Westchester Community College ("WCC") in connection with the negotiation and preparation of an agreement with MGM Yonkers, Inc. D/B/A MGM Empire City Casino ("MGM Yonkers") to create and jointly operate a gaming school for WCC students at MGM Empire City Casino in Yonkers,

Department Of Law (18)

- whereby WCC students will be educated to meet the training and skills required to be employed in the gaming and casino industries.
- ✓ Participated in extensive discussions and consideration with the Department of Information Technology, and provided legal advice related to the development and implementation of an electronic signature process for contracts, which will now be used in order to simplify and expedite contract execution.
 - ✓ Provided on-going legal assistance regarding the County's contract with the consultant for services concerning the procurement of services to manage and operate the Bee-Line system, as well as provided legal services concerning the procurement, itself, and the intended subsequent contract for such services.
 - ✓ Provided legal assistance regarding the negotiation and drafting of, and regarding the preparation of legislation and legal notices concerning, a 'payment in lieu of taxes' (PILOT) agreement for the property of what was formerly known as the Indian Point Energy Center.
 - ✓ Provided legal advice and counsel to the Office of the Westchester County District Attorney regarding the procurement of, and contracting for, additional enhancements to its enterprise case management system.
 - ✓ Provided legal advice and counsel to the Executive Director of the Westchester County Tax Commission regarding the procurement of, and contracting for, services concerning commercial appraisals, with those services also being made available to other local municipalities that choose to participate.
 - ✓ Provided legal assistance regarding the negotiation and drafting of an agreement for an enterprise-wide technology system upgrade for the County's Bee-Line bus system.
 - ✓ Assisted the Department of Emergency Services with the preparation and issuance of various RFPs concerning emergency services, including emergency management and homeland security planning and preparedness, disaster recovery and hazard mitigation, training and exercises concerning emergency management and homeland security, and negotiated and prepared the resulting contracts.
 - ✓ Provided legal advice and counsel to the Department of Information Technology concerning the negotiation and drafting of an agreement for maintenance services for the individual equipment and overall system components comprising the County's 'Enhanced 911' system,
 - ✓ Provided legal advice and counsel to the Department of Public Works and Transportation regarding the negotiation of an extension of its agreement with the MTA concerning the use of its MetroCard system for the Bee-Line, and regarding the negotiation of a new agreement with the MTA concerning the use of its OMNY system for the Bee-Line.
 - ✓ Assisted the Department of Environmental Facilities in asserting County's legal right to undertake necessary sewer upgrade work at the Anaconda Superfund site located in the Village of Hastings-on-Hudson, and represented the Department in meetings with the New York State Department of Environmental Conservation, the real property owner and the Village of Hastings-on-Hudson.
 - ✓ Assisted Department of Environmental Facilities in analyzing the legal rights of the County to undertake necessary sewer upgrade work at the Anaconda Superfund site, including legal research, title research, and working with the Village of Hastings-on-Hudson to obtain the original records from the Village concerning the County's easements right in the parcels.
 - ✓ Assisted the Department of Emergency Services in the preparation of an Agreement with an ambulance service to provide supplemental EMS coverage in the County.
 - ✓ Assisted the Department of Public Safety with legislation to authorize IMAs with various local school districts whereby DPS would assign uniformed Westchester County police officers to serve as School Resource Officers at the district schools to provide an added layer of security and protection to students and teachers.
 - ✓ Provided continuing legal counsel to the Department of Senior Programs & Services with respect to its various federally-funded programs for the elderly. Services included providing legal counsel concerning federal and County procurement requirements; preparing RFPs; drafting agreements; drafting legislation and A&C resolutions to enable the Department to enter into contracts with various

Department Of Law (18)

agencies and municipalities to implement its various senior services programs.

- ✓ Provided legal advice, drafted legislation, resolutions and agreements for the County's STOP-DWI Office in connection with various programs designed to prevent alcohol-related driving accidents and educate youth on the dangers of DWI.
- ✓ Assisted the Director of Tourism & Film in the presentation of contracts with various advertising and public relations firms to promote tourism and film production in the County.
- ✓ Assisted the Department of Parks, Recreation and Conservation in negotiating an agreement and drafting legislation to authorize the grant of permanent and temporary easements to Clean Path New York LLC to lay and maintain high voltage electrical lines over and under Croton Point Park. This will facilitate the construction of a proposed 1,300 megawatt high voltage direct current transmission project that will run underground and underwater for approximately 178 miles from Delhi, New York to Queens, New York. The project will deliver power from new wind and solar generation facilities in upstate New York directly to New York City, providing the city with approximately 15% of its annual electricity consumption.
- ✓ Provided legal advice and assistance to the Department of Community Mental Health, in connection with the renewal of contracts for the continuation of eight (8) Mobile Crisis Response Teams, comprised of specialized trained staff with experience in addressing mental health, developmental disabilities, substance abuse and co-occurring issues which do not involve known threats of violence or medical emergencies, in order to address and assist police in addressing a wide range of behavioral health related crisis including conflict resolution, suicide threats, wellness checks, substance misuse, and more, relying on a trauma-informed deescalation and harm reduction techniques. This initiative ("Project Alliance Initiative") is part of the County's far reaching plan to "Reimagine Policing" in Westchester County.
- ✓ Assisted the County Youth Bureau Office in preparing agreement templates and drafting legislation and resolutions in connection with the submission to the State of New York (the "State") by the County of a resource allocation plan (the "Plan") which will qualify the County to receive certain State reimbursements through the State's Office of

Children and Family Services ("OCFS") and administer such funds on behalf of the OCGS and implement youth programs through municipalities and not-for-profits under the following funding streams: (i) Youth Development Program funds; (ii) Runaway and Homeless Youth Act funding; and (iii) the newly created program entitled "Youth Sports and Educational Opportunity Funding."

- ✓ Assisted the Department of Information and Technology in preparing a County Policy for the Appropriate Use of Generative Artificial Intelligence (AI)-Based Tools.
- ✓ Assisted the Department of Planning with the planning and negotiation of an intermunicipal agreement ("IMA") with the City of Yonkers for the construction of a park by the Hudson River for the benefit of all County Residents. Pursuant to the IMA, the County will pay up to a not-to-exceed amount of \$15,000,000 for the construction of the park improvements, and will convey a parcel 0.4 acres in size to the City of Yonkers. This collaboration between the City of Yonkers, which has already invested \$13,000,000.00 in the acquisition of several parcels, and the County of Westchester, which has agreed to finance a significant portion of the park improvements, will require bonding legislation, property conveyance and an agreement with the City of Yonkers, so that all County residents can enjoy another waterfront park in Westchester County.
- ✓ Assisted with agreements with the law firms of Hawkins, Delafield & Wood LLP, Norton Rose Fulbright US LLP, Harris Beach PLLC and Bryant Rabbino LLP, for the provision of bond counsel services to the County of Westchester in an "of counsel" capacity to the County Attorney, on an "as-needed" basis, for the period commencing August 1, 2024 through July 31, 2027, with a County option to renew the term of each of the agreements for one additional two-year period.
- ✓ Provided legal advice and assistance to the Department of Finance to collect delinquent license and utility fees due the County from commercial carriers and Entergy Nuclear Operations, Inc./Holtec Decommissioning International, LLC.
- ✓ Provided legal advice and assistance to the Department of Public Works in establishing an EV Charging Station joint improvement program with local municipalities.

Department Of Law (18)

- ✓ Provided legal advice and drafting services to the Office of the County Executive, working in conjunction with the Department of Public Safety to negotiate and draft the service agreement with the vendor to implement the County's new School Bus Stop Arm Demonstration Program, to protect children who are entering and exiting school buses.
- ✓ Provided legal advice and assistance to the Board of Elections to enter into facility use agreements with polling places in connection with the upcoming Primary, Special and General Elections.
- ✓ Provided legal advice and drafting services to the Department of Public Safety to enter into IMA's with municipalities to distribute 300-500 mobile radios for local police vehicles for the purpose of providing County-wide radio communication channel(s) for incidences that cross jurisdiction lines.

CHILDREN AND FAMILY SERVICES

Family Court Bureau (FCB)

- ✓ The Family Court Bureau has three main areas of responsibility-child welfare, juvenile justice and child support.
- ✓ Attorneys provide legal services for the Department of Social Services ("DSS") and the Department of Probation ("DOP").
- ✓ The FCB handles some of the most time- sensitive and stressful cases.
- ✓ Handles thousands of cases each year in the three Westchester Family Courts, Supreme Court and before administrative tribunals.
- ✓ In the first six months of 2024, the FCB has remained steady in new referrals as compared to the same time in 2023 (which was a 27% increase over 2022). Even with the influx of new referrals, the FCB had fewer attorneys than previous years.

Child Welfare

- ✓ Represents DSS in child neglect and abuse cases , extensions of placement, termination of parental rights, foster care review

approvals, kinship, guardianship, adoptions, fair hearings, orders of protection, PINS cases and custody and visitation and court ordered investigations.

- ✓ Appeared on behalf of DSS in permanency hearings, juvenile delinquency proceedings and other child welfare proceedings in the Westchester Family Court, Supreme Court and administrative tribunals.
- ✓ FCB attorneys work collaboratively with DSS-Division of Child Protection and other child welfare specialists to further the agency's mission to protect children and youth and improve the lives of families.
- ✓ Attorneys provide general legal assistance/advice for DSS.
- ✓ Responsible for providing legal advice and training to all child welfare program areas.
- ✓ Attends monthly meetings with senior DSS staff to review ongoing matters.
- ✓ Provides input into agency policies and legislation.
- ✓ Assists DSS with issues involving compliance with court orders, expediting provision of services, guidance on agency policies, federal and state regulations, immigration issues, and other issues affecting permanency and the well-being of children.
- ✓ Participates as a member of both the County's Child Fatality Review and the Multi-Disciplinary Teams.

Juvenile Justice

- ✓ The FCB investigates and presents cases involving juvenile delinquency, juvenile offender and adolescent offenders and extensions on behalf of the people of Westchester County. In 2024, there was a 17% increase in cases referred to the FCB.
- ✓ Attorneys present violations of probation in Family Court on behalf of the Department of Probation and provide information to victims of youth crime on available community-based services, including counseling, crisis intervention and safety planning.
- ✓ Maintains a network of community based and county agencies who can help to provide diversion services for juvenile justice involved

Department Of Law (18)

youth to be held accountable without disrupting their ability to lead productive lives and contribute to their community

- ✓ Serves as a liaison and collaborates with various community based service providers and juvenile justice stakeholders on issues involving juvenile delinquency.
- ✓ Provides legal training to DOP on violations of probation and various police departments throughout Westchester at in-service training, reviews certain DOP procedures to ensure compliance with state and federal law and responds to all requests for formal opinions regarding probation issues.

Child Support

- ✓ The FCB provides representation of child support proceedings to DSS and private petitioners under both the Uniform Interstate Family Support Act (“UIFSA”) and section 111-g of the New York State Social Services Law.
- ✓ Initiates thousands of proceedings against non-custodial parents who fail to meet child support obligations owed either directly to the County or to the individual custodial parents.
- ✓ Presents Uniform Interstate Child Support cases in family Court on behalf of out-of-state custodial parent petitioners who are seeking to establish paternity and obtain child support from Westchester residents.
- ✓ Appears on paternity cases, modification cases and prosecutes non-custodial parents who willfully fail to meet their support obligations.

Specific Accomplishments:

2024 Ongoing Initiatives: Updates

Community Outreach

- ✓ In 2021, the FCB established a community outreach program and since then endeavored to expand the program that involves a long-term, proactive partnerships among the Law Department, law enforcement, the community and public and private organizations. The purpose is to use the authority of the FCB to solve problems,

improve public safety and enhance the quality of life of community members. Community out-reach represents a distinct departure from the case and conviction orientation of traditional prosecution. Instead, the community outreach initiative seeks ways to prevent and reduce youth crime and improve public safety. This past year the FCB has presented at various schools and community network meetings. It has also formulated partnerships with various Youth Courts and was instrumental in aiding the Mt. Vernon Police Department with designing their own Youth Court. Additionally, the child support, child welfare and juvenile justice teams presented to stakeholders at the County's Domestic Violence Counsel. In 2024, for the fourth year, the FCB will participate in the National Night Out Against Crime events throughout the County.

Diversion Services

- ✓ Diversion programs are alternatives to initial or continued formal processing of youth in the juvenile delinquency system. The FCB has worked with various Youth Courts and mediation programs to divert cases from formal prosecution since 2022. The FCB has expanded its partnerships with community based programs in order to meet more of the needs of our court involved youth and to off ramp them from prosecution and perhaps deeper into the justice system. One such endeavor was the partnership with the Mount Vernon Police Department in forming their own Youth Court. Since 2022, the FCB was instrumental in helping to get this Youth Court operational and has recently used the program for diversion services. Additionally, in 2024 the FCB has participated in endeavors through the Annie E. Casey Foundation to expand diversion opportunities in the City of Yonkers. Bringing together community based organizations in this specific area has been critical in meeting the increasing demand of cases referred from the City of Yonkers.

Victim's Services

- ✓ Since 2022, the FCB was successful in collaborating with community based partners such as WESTCOP and other county agencies to expand the network of services offered to victims of youth crime, including, but not limited to: safety planning, therapeutic interventions, assistance with victim services applications, medical bills and counseling expenses, lost wages and other types of

Department Of Law (18)

assistance. The Bureau is now able to refer crime victims for services routinely and continued to do so throughout 2023.

Youth Part Collaboration

- ✓ Over the past few years, the FCB implemented the groundbreaking Raise the Age legislation incorporating youths who are 16 and 17 years old youths into the juvenile justice practice and worked closely with all stakeholders. The FCB endeavors to work in conjunction with the Westchester County District Attorney's Office to develop a plan to screen and draft cases involving youth who are accused of felony crimes. Since the vast majority of Youth Part County Court cases are transferred to Family Court, the FCB endeavors to have early access to these cases and, when appropriate, draft and appear in the Youth Part prior to transfer. This will ensure that the proper charges are drafted and the transfer occurs expeditiously and efficiently. The FCB has appeared in the Youth Part many times in 2024 in order to aid the Court adding to its case responsibilities.
- ✓ The FCB has appeared in the Youth Part many times in 2024 and works closely with the DA's Office to collaborate on evidence review and charging decisions in order to aid the Court. The two agencies collaborate in order to ascertain case viability, appropriate charges and make detention determinations.

Juvenile Delinquency Discovery

- ✓ On April 1, 2019, New York State passed sweeping criminal justice reform legislation, including discovery reform, requiring prosecutors to disclose their evidence to the defense earlier in case proceedings. The discovery reforms went into effect January 1, 2020 and were amended in April 2020. Similarly, the New York State legislature is proposing a similar bill for juvenile delinquency proceedings that will affect the FCB significantly. The reformed law requires significantly greater openness and establishes specific timeframes for the sharing of evidence between the Presentment Agency and defense during the pretrial period. As a result of the prior legislation, District Attorney's Offices created electronic and digitized methods for dealing with the volume of evidence and the ensuing disclosures to defense counsel. In 2022, in anticipation of the change in law and based upon the FCB's close collaboration with the District Attorney's office regarding Youth Part cases, the FCB, the Information

Technology Department and the District Attorney's Office have collaborated to develop a digital discovery process for juvenile delinquency cases using a portal to collect and distribute discovery. In 2023, that program has been developed and is currently partially in use by the FCB in preparation for full implementation by the end of 2023. This portal will be used by the FCB attorneys to receive evidence, paperwork, videos, etc. from law enforcement electronically. This will allow for easy review, redaction and storage. It will also allow for easy service upon defense counsel without the need for USB drives, CDs, etc. In 2024, the portal was fully implemented within the FCB and has added to the productivity of the juvenile delinquency unit.

Professional Development Opportunities

- ✓ The FCB has implemented the use of Legal Files to track cases electronically and has implemented case review over the last year in order to enhance professional development and accountability. In order to maximize professional development and retention, the FCB endeavors to establish a committee of attorneys and support staff to consider professional development, quality of life and other changes the FCB could make to support and retain staff. To support implementation, the FCB is reviewing best practices adopted by different jurisdictions and will use this information to improve practices countywide. The FCB has implemented Bureau-wide case review, uses the electronic case management system, Legal Files extensively in order to track assignments and manage caseloads. The FCB also implemented a small, second-seat program targeted at training the less experienced lawyers. In 2024, that has expanded due to the need to train new attorneys in the practice. Here, they team up with more experienced attorneys in order to develop trial skills and learn new areas of the law. The FCB will expand this program in 2025.

Training Opportunities

- ✓ Throughout the past four years, the FCB continues to provide extensive training for attorneys, continual updates on judicial decisions and changes in the law and ongoing training for all legal staff, including training in ethical responsibilities. The FCB instituted a monthly Lunch and Learn series which has covered numerous topics

Department Of Law (18)

throughout the year. The FCB will continue to develop additional training opportunities for both attorneys and support staff. In 2024, the FCB has already completed four separate major trainings. Additionally, in 2024 the FCB worked with the Court Improvement Project to provide two legal trainings on child welfare issues for the County.

Family First Legislation

- ✓ The Family First Prevention Services Act was signed into law as part of the bipartisan budget act and went into effect in New York in late 2021. This act reforms the federal child welfare financing streams, Title IV-E and Title IV-B of the Social Security Act, to provide services to families who are at risk of entering the child welfare system. The bill aims to prevent children from entering foster care by allowing federal reimbursement for mental health services, substance use treatment, and in-home parenting skill training. It also seeks to improve the well-being of children already in foster care by incentivizing states to reduce placement of children in congregate care. In the New York implementation of the act, the Family Courts are now charged with additional duties to review the congregate placements. This review has added additional court appearances and litigation in both the child welfare and juvenile justice areas.
- ✓ Giglio and Discovery Obligations
- ✓ Giglio material is a well-known term among law enforcement. Giglio v. United States, 405 U.S. 150, is a 1972 Supreme Court case involving the prosecution's obligations in regards to criminal discovery and disclosure. In Giglio, the Court held the prosecution is obligated to disclose all information or material that may be used to impeach the credibility of prosecution witnesses (including situations where police officers act as witnesses for the prosecution). As such, in the last several years, the FCB has increased its work around gathering information which may impact the credibility of its witnesses including gathering lawsuit and disciplinary information and turning it over to defense counsel. As the case law evolves in New York, so does the FCB's obligations. In order to comply with the law, the FCB staff must do extensive research into a witness' background including any and all lawsuits and disciplinary actions. Additionally, as more and more police departments outfit their officers with body worn camera, the FCB must expand its work on each case

to review such evidence along with other surveillance videos. This has a profound effect on the amount of work which is done by the FCB team for each and every case adding numerous hours of work to each case.

SCR Reform

- ✓ At the start of 2022, legislation went into effect that changes how New York State's Statewide Central Registry (SCR) operate. It raised the standard of evidence required for the system to list a person on a registry with an indicated case. SCR record for indicated cases of neglect or maltreatment now will be sealed after eight years, instead of up to twenty-eight years. If you win at trial in family court or your case is dismissed, you no longer have to go through a separate process to clear your SCR record-it will be amended and sealed automatically. Now, when you challenge your SCR record in a fair hearing, you always can present evidence that the allegation is not relevant to employment. In 2022, the FCB had to adapt to this reform in the child welfare area and trained DSS in the new law. In both 2024 the FCB has prevailed on over 60% of these hearings despite the higher standard implemented in the 2022 law (an increase of 10% since 2023).

Cross Over Youth Initiative

- ✓ The Crossover Youth Practice Model (CYPM) is a multi-agency, cross-system practice model that aims to address the needs of youth involved in both child welfare and juvenile justice systems. Its core goal is to reduce further youth involvement in the juvenile justice system in a manner that is consistent with the needs and best interests of the youth and the need for the protection of the community. The FCB will endeavor to begin a CYPM model in Westchester County by engaging the Department of Social Service, the Department of Probation and the family court system to create a model, which seeks to achieve the following four overarching goals:
 1. Reduction in the number of youth crossing over and becoming dually-involved;
 2. Reduction in the number of youth placed in out-of-home care;
 3. Reduction in the use of congregate care; and

Department Of Law (18)

4. Reduction in the disproportionate representation of youth of color, particularly in the crossover population
5. The model will coordinate efforts amongst child welfare and juvenile justice arrears in order to reduce the number of youth going further into the juvenile justice system.

Second Chair Program

- ✓ A second chair program is a training and mentoring program for attorneys. Second chair means a lawyer who helps the lead attorney in court. The services of second chair includes examining some of the witnesses, arguing some of the points of law, handling parts of the voir dire, and presenting the opening statement or closing argument. Hence, second chair offers every level of training, support, and consultation for the trial attorney preparing a case for trial. A second chair can execute any task as long as it is done under the supervision of an attorney on the list. The FCB will institute a formal second chair program in order to give the more junior attorneys an opportunity to hone trial skills and give the more senior attorneys an opportunity to teach and mentor. Each area of the FCB will institute this program in a formal way to ensure everyone has an opportunity. With the increase of new attorneys joining the FCB in recent years, the need for a second chair program has increased. The FCB has instituted this program in order to aid in the professional development of these attorneys.

2025 Initiatives

Strong Starts

- ✓ The Strong Starts Court initiative brings expertise in early childhood development to all stages of Family Court proceedings and supports infants, toddlers, caregivers, and families so that the court becomes a catalyst for positive change in the lives of the youngest children. The Strong Starts Court was developed in response to gaps in the child welfare system and, after being piloted in the Bronx Family Court in 2015, has expanded to Westchester County. Children under the age of 6 make up a disproportionate percentage of those entering the foster care system. The Strong Starts Court Initiative fills gaps in the current approach to court-involved infants. Infants often remain in

out-of-home placements as cases drag on sometimes for years. Limited contact with parents and frequent changes in care jeopardize infant development, and signs of developmental delays are often not identified or addressed. In addition, the complex needs of birth parents are not comprehensively assessed, resulting in inadequate or inappropriate service plans. Through the FCB's participation in this program we can: ensure that infants and parents receive comprehensive screening and assessment at entry level into the child development services, adult development services and services required for family stability; and shift from an adversarial to a collaborative approach in addressing the needs of families.

State Wide Juvenile Justice Training

- ✓ Juvenile court judges and practitioners are the most important public figures in the juvenile justice system-they decide whether youth become court-involved each year and for how long, whether youth are involuntary removed from their homes and communities, and which services they receive. Because of the important role they play in their communities, it is vital that they receive comprehensive training on juvenile justice issues. The FCB will be partnering with the Judicial Institute to develop a comprehensive state-wide training on juvenile justice, including topics of reform initiatives and changing the law. The symposium will provide state-wide leadership, coordination, and resources to those working to prevent and respond to juvenile delinquency and victimization.

Threat Assessment and Management Teams (TAM)

- ✓ (TAM) teams are multi-disciplinary teams that bring together law enforcement, mental health professionals, school officials, and other community stakeholders to identify, assess, and manage threats of targeted violence. These teams receive reports of concerning behavior by individuals, gather additional information, assess the risk of potential violence and then develop intervention and management strategies to mitigate the risk of violence individuals displaying the concerning behavior pose. The teams seek to take a "public health" approach by engaging a broad group of stakeholders to examine the potential risk and protective factors at play and develop mitigation measures that ideally resolves the concern before a crime is committed that would necessitate direct law enforcement

Department Of Law (18)

involvement. At their best, these teams operate with restorative models and seek to intervene before law enforcement involvement is required. Respect for individual rights and civil liberties is paramount to the work of these teams. The teams' focus must always be on the subject's behavior, and not the underlying ideology that may appear to rationalize the behavior. In 2024, the FCB became part of this team in Westchester County in order to help identify, assess and manage the threats of targeted violence

Risk Management and OSHA Safety Standards

- ✓ Establishes, coordinates and monitors the County's Property and Casualty Commercial and Self Insurance Programs with the County Attorney's Office, Budget Department and Finance Office.
- ✓ Participates in the administration of the County's Self Insurance Programs and 6N Fund, consults in on the reserves established for funding self-insured losses and/or self insured retentions and deductibles, etc.
- ✓ Administers the processing of all losses and claims, both insured and self-insured, under the Risk Management program.
- ✓ Establishes and maintains working relationships with consultants, insurance brokers, insurers, actuaries and auditors regarding the County's Risk Management Program.
- ✓ Maintains a Risk Management tracking system for all 6N claims against the County.
- ✓ Creates and prepares all reports utilizing data systems for the purposes of cost analysis and actuarial processes.
- ✓ Reviews and evaluates all County contracts for compliance with insurance and indemnity and hold harmless requirements and suggests needed insurance coverage where required.
- ✓ Monitors and negotiates the insurance needs of the County: i.e. as it relates to its property and casualty, boiler, Liberty Lines Buses, Business Automobile, Aviation, Hull Protection and Indemnity, Crime, Volunteer, Fine Arts, Builder's Risk, Cyber Security, Flood, and Special Events exposures.
- ✓ Evaluates and monitors coverage issues pertaining to the County's Para Transit and small bus fleet, etc.
- ✓ Coordinates and negotiates the placement of special insurance needs of the County as they arise.
- ✓ Initiates, negotiates and coordinates the (subrogation) collections for damage to County owned property and seeks financial recoveries for "loss of use," whenever possible.
- ✓ Monitors and analyzes motor vehicle abstracts to determine employees' driving conduct/status, notifies and liaises with the required departments when necessary Pursuant to the County's policy, evaluates an employee's motor vehicle conduct with regard to continued operation of a County vehicle.
- ✓ Risk reduction and training, OSHA management, reporting, inspections, remediation, fire safety program, building inspections and safety training.
- ✓ Develops, coordinates, oversees and plans training and drills for evacuation plans for all facilities where County employees reside.
- ✓ Evaluates new and emerging risk exposures and recommends the needed insurance, and risk management measures.
- ✓ Educates departmental contract monitors and other personnel on the need to obtain and ensure that Certificates of Insurance from service providers, vendors etc. not only meet the County's insurance requirements but remains current throughout the contract period. Advises on scopes of work requiring copies of insurance policies, and where required special insurance coverage -e.g. OCP, crime, Builders Risk coverage etc.
- ✓ Researches tools and services available to simplify and automate the County's monitoring of incoming Certificates of Insurance and Notices of Cancellations and Non-Renewals.
- ✓ Establishes and prepares Fiscal Year Budget and Premium Allocation for the Office of Risk Management (and for required departments).
- ✓ Researches and secures enhanced third-party safety programs for Liberty Lines Bee Line Bus Operation and analyzes loss trends associated with our Bus Operation.